

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS VS REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION TO STRIKE REGARDING DEFENDANT MUELLER'S REQUEST FOR A PROTECTIVE ORDER

Tentative Ruling:

The motion is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405945	TREMONT RANCH PROPERTY OWNERS ASSOCIATION VS ORBIS FINANCIAL, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Art. XX, §§20.1-20.1.7 provide a dispute resolution procedure for disputes between “any Owners, and Declarant, or any director, officer, partner, shareholder, Member, employee, representative, contractor, subcontractor, design professional or agent of the Declarant... arising under this Declaration or relating to the Project, including disputes regarding latent or patent construction defects....” (CC&Rs, §20.1.) The “Declarant” is defined is the CC&Rs as “Stonefield, Inc., (as the Owner of Lots 1, 2, 3, 5 through 8, 11 through 14, 18 and 19)”, various other individuals, and “its successors, and any Person to which it shall have assigned any of its rights hereunder by an express written agreement.” (CC&Rs, §1.19.)

The provisions in the CC&Rs are for a judicial reference, not an arbitration. Judicial reference is, in short, a legal proceeding, while “[a]rbitrations provide an *alternative* method of dispute resolution to legal proceedings. They follow different rules and serve different ends. They are as distinct in their elementary structure as dirt is to water. Mixing the two only produces mud—not the sort of stuff we willingly tread in.” (*National Union Fire Ins. Co. v. Nationwide Ins. Co.* (1999) 69 Cal.App.4th 709, 715 [finding that an order to “binding arbitration with a right of appeal” was a judicial reference because the proceedings conducted were a reference in everything but name].)

Further, they do not apply to Boone Enterprises, SBF Financial, or Pheasant Run and thus plaintiff is not obligated to engage in that procedure as to it. While Orbis, Axios, Emerald Bay and SRDP were property owners, the dispute as to them does not arise out of the CC&Rs but rather out of the Repair Agreement, which moving parties do not contend contains an arbitration or reference clause. The claims as against Martin Boone do arise out of his status as a (former) officer of Tremont Ranch. However, because the claims against him are intertwined with the claims against the other